

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding
Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113
Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: July 9, 2026

TIME: 10:00 A.M.

TO CONTEST THE RULING: YOU MUST DO THE FOLLOWING OR NO OBJECTIONS WILL BE HEARD – see California Rule of Court 3.1308(a)(1) and Civil Local Rule 8.D:

(1) Call the Court at (408) 808-6856 before 4:00 P.M.

(2) Notify the other side by phone or email before 4:00 P.M. that you plan to appear and contest the ruling

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.)

TO APPEAR AT THE HEARING: The Court strongly prefers in person appearances. If you must appear virtually, click on the below link or copy and paste into your internet browser and scroll down to Department 2.

https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml

COURT REPORTERS: The court does not provide official court reporters for civil/probate law and motion hearings. See court website for policy and forms for court reporters at hearing

State and local Court Rules prohibit recording of court proceedings without a Court order.

TROUBLESHOOTING TENTATIVE RULINGS

If do not see this week's tentative rulings, they have either not yet been posted or your web browser cache (temporary internet files) is accessing a prior week's rulings. "REFRESH" or "QUIT" your browser and reopen it, or adjust your internet settings to *see only the current version of the web page. Your browser will otherwise access old information from old cookies even after the current week's rulings have been posted.*

LINE #	CASE #	CASE TITLE	RULING
LINE 1	26PR201682	ESTATE OF JOHN SHEFFERLY	Click or scroll to line 1 for tentative ruling. Court will sign proposed order.
LINE 2			
LINE 3			
LINE 4			

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

LINE 5			
LINE 6			
LINE 7			
LINE 8			
LINE 9			
LINE 10			
LINE 11			
LINE 12			
LINE 13			
LINE 14			
LINE 15			
LINE 16			
LINE 17			
LINE 18			
LINE 19			
LINE 20			
LINE 21			
LINE 22			
LINE 23			
LINE 24			
LINE 25			
LINE 26			
LINE 27			
LINE 28			
LINE 29			
LINE 30			

Calendar line 1

Case Name: ESTATE OF JOHN SHEFFERLY

Case No.: 26PR201682

INTRODUCTION

Decedent John Shefferly (“Decedent”) passed away intestate on January 6, 2026. The court appointed Elizabeth Cassidy (“Personal Representative”) as personal representative of Decedent’s estate.

Currently before the court is Personal Representative’s motion for an order for production of Decedent’s Google Account contents. The motion is unopposed.

DISCUSSION

Personal Representative seeks an order compelling Google to provide her with the contents of Decedent’s Google Account. Probate Code section 876 provides:

If a deceased user consented to or a court directs disclosure of the content of electronic communications of the user, the custodian^[1] shall disclose to the personal representative of the estate of the user the content of an electronic communication sent or received by the user if the personal representative gives to the custodian all of the following:

- (a) A written request for disclosure in physical or electronic form.
- (b) A certified copy of the death certificate of the user.
- (c) A certified copy of the letter of appointment of the representative, a small-estate affidavit under Section 13101, or court order.
- (d) Unless the user provided direction using an online tool, a copy of the user’s will, trust, power of attorney, or other record evidencing the user’s consent to disclosure of the content of electronic communications.
- (e) If requested by the custodian, any of the following:

- (3) An order of the court finding any of the following:
 - (A) That the user had a specific account with the custodian, identifiable by the information specified in paragraph (1).
 - (B) That disclosure of the content of the user’s electronic communications would not violate Chapter 121 (commencing with Section 2701) of Part 1 of Title 18 of, and Section 222 of Title 47 of, the United States Code, or other applicable law.
 - (C) Unless the user provided direction using an online tool, that the user consented to disclosure of the content of electronic communications.
 - (D) That disclosure of the content of electronic communications of a user is reasonably necessary for estate administration.

¹ “Custodian” means a person that carries, maintains, processes, receives, or stores a digital asset of a user. (Prob. Code, § 871, subd. (f).) In this instance, the custodian is Google.

Probate Code section 881, subdivision (a) provides, “Not later than 60 days after receipt of the information required under Sections 876 to 879, inclusive, a custodian shall comply with a request under this part from a fiduciary or designated recipient to disclose digital assets or terminate an account. If the custodian fails to comply with a request, the fiduciary or designated recipient may apply to the court for an order directing compliance.” “An order under subdivision (a) directing compliance shall contain a finding that compliance is not in violation of Section 2702 of Title 18 of the United States Code.” (Prob. Code, § 881, subd. (b).)

Here, Personal Representative has contacted Google to attempt to gain access to Decedent’s accounts but Google is requesting a court order before it will provide her with access. With respect to the findings the court must make, Personal Representative has provided a declaration indicating that Decedent possessed a Google account under the email address jshefferly89@gmail.com. (Declaration of Elizabeth Cassidy in Support of Motion, ¶ 4.) She further indicates that Decedent did not provide any direction using an online tool. (*Id.* at ¶ 7.) She also contends that the disclosure is necessary to assist her in locating Decedent’s assets as Decedent maintained a folder on his Google Drive listing his accounts on various online platforms. (*Id.* at ¶ 6.) Finally, with respect to the legality of the disclosure, a personal representative is authorized to access a decedent’s digital assets. (See Prob. Code, §§ 880, subds. (c)(1)&(d) [indicating that a fiduciary has the right to access digital assets]; 871, subd. (l) [“ ‘Fiduciary’ means an original, additional, or successor personal representative, conservator, agent, or trustee.”].)

Accordingly, the motion is GRANTED. The Court will sign the proposed order provided by Personal Representative.